



February 13, 2026

ENGROSSED HOUSE BILL No. 1114

DIGEST OF HB 1114 (Updated February 11, 2026 9:18 am - DI 140)

Citations Affected: IC 5-10; IC 27-8; IC 27-13.

Synopsis: Coverage for certain cancer prescriptions. Prohibits a state employee health plan, a policy of accident and sickness insurance, and a health maintenance organization that provides coverage for advanced, metastatic cancer and associated conditions from requiring that, before providing coverage for a prescription drug, the insured fail to successfully respond to a different prescription drug or prove a history of failure of a different prescription drug.

Effective: July 1, 2026.

Pryor, Goss-Reaves, Carbaugh, Shackleford

(SENATE SPONSORS — WALKER K, TAYLOR G, QADDOURA, BECKER,
RANDOLPH LONNIE M)

January 5, 2026, read first time and referred to Committee on Insurance.
January 20, 2026, reported — Do Pass.
January 27, 2026, read second time, amended, ordered engrossed.
January 28, 2026, engrossed. Read third time, passed. Yeas 93, nays 0.

SENATE ACTION

February 2, 2026, read first time and referred to Committee on Insurance and Financial Institutions.

February 12, 2026, reported favorably — Do Pass; reassigned to Committee on Appropriations.

EH 1114—LS 6126/DI 154



February 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1114

A BILL FOR AN ACT to amend the Indiana Code concerning insurance.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-10-8-18.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 18.5. (a) This section applies only to a:**

4 **(1) prescription drug that is:**

5 **(A) consistent with best practices for the treatment of**
6 **advanced, metastatic cancer or an associated condition;**

7 **(B) supported by peer reviewed, evidence based literature;**
8 **and**

9 **(C) approved by the federal Food and Drug**
10 **Administration; and**

11 **(2) state employee health plan that is established, entered into,**
12 **amended, or renewed after June 30, 2026.**

13 **(b) As used in this section, "advanced, metastatic cancer" means**
14 **cancer that has spread from the primary or original site of the**
15 **cancer to nearby tissues, lymph nodes, or other areas or parts of**
16 **the body.**

17 **(c) As used in this section, "associated conditions" means the**

EH 1114—LS 6126/DI 154



1 symptoms or side effects directly attributable to advanced,
 2 metastatic cancer or its treatment, which based on the
 3 recommendation of a health care practitioner and in accordance
 4 with documented clinical evidence and generally accepted
 5 guidelines, would further jeopardize the health of the covered
 6 individual if left untreated.

7 (d) As used in this section, "covered individual" means an
 8 individual entitled to coverage under a state employee health plan.

9 (e) As used in this section, "state employee health plan" refers
 10 to the following that provide coverage for prescription drugs:

11 (1) A self-insurance program established under section 7(b) of
 12 this chapter.

13 (2) A contract with a prepaid health care delivery plan that is
 14 entered into or renewed under section 7(c) of this chapter.

15 (f) A state employee health plan that provides coverage for
 16 advanced, metastatic cancer and associated conditions may not
 17 require that, before the state employee health plan provides
 18 coverage for a prescription drug, the covered individual:

19 (1) fail to successfully respond to a different prescription
 20 drug; or

21 (2) prove a history of failure of a different prescription drug.

22 SECTION 2. IC 27-8-5-32 IS ADDED TO THE INDIANA CODE
 23 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 24 1, 2026]: Sec. 32. (a) This section applies only to a:

25 (1) prescription drug that is:

26 (A) consistent with best practices for the treatment of
 27 advanced, metastatic cancer or an associated condition;

28 (B) supported by peer reviewed, evidence based literature;
 29 and

30 (C) approved by the federal Food and Drug
 31 Administration; and

32 (2) policy of accident and sickness insurance that is issued,
 33 amended, or renewed after June 30, 2026.

34 (b) As used in this section, "advanced, metastatic cancer" means
 35 cancer that has spread from the primary or original site of the
 36 cancer to nearby tissues, lymph nodes, or other areas or parts of
 37 the body.

38 (c) As used in this section, "associated conditions" means the
 39 symptoms or side effects directly attributable to advanced,
 40 metastatic cancer or its treatment, which based on the
 41 recommendation of a health care practitioner and in accordance
 42 with documented clinical evidence and generally accepted



1 guidelines, would further jeopardize the health of the insured if left
2 untreated.

3 (d) As used in this section, "insured" means an individual who
4 is entitled to coverage under a policy of accident and sickness
5 insurance.

6 (e) As used in this section, "policy of accident and sickness
7 insurance" means a policy of accident and sickness insurance that
8 provides coverage for prescription drugs.

9 (f) A policy of accident and sickness insurance that provides
10 coverage for advanced, metastatic cancer and associated conditions
11 may not require that, before the policy of accident and sickness
12 insurance provides coverage for a prescription drug, the insured:

13 (1) fail to successfully respond to a different prescription
14 drug; or

15 (2) prove a history of failure of a different prescription drug.

16 SECTION 3. IC 27-13-7-29.5 IS ADDED TO THE INDIANA
17 CODE AS A NEW SECTION TO READ AS FOLLOWS
18 [EFFECTIVE JULY 1, 2026]: Sec. 29.5. (a) This section applies only
19 to:

20 (1) a prescription drug that is:

21 (A) consistent with best practices for the treatment of
22 advanced, metastatic cancer or an associated condition;

23 (B) supported by peer reviewed, evidence based literature;
24 and

25 (C) approved by the federal Food and Drug
26 Administration; and

27 (2) an individual contract or a group contract that is entered
28 into, amended, or renewed after June 30, 2026.

29 (b) As used in this section, "advanced, metastatic cancer" means
30 cancer that has spread from the primary or original site of the
31 cancer to nearby tissues, lymph nodes, or other areas or parts of
32 the body.

33 (c) As used in this section, "associated conditions" means the
34 symptoms or side effects directly attributable to advanced,
35 metastatic cancer or its treatment, which based on the
36 recommendation of a health care practitioner and in accordance
37 with documented clinical evidence and generally accepted
38 guidelines, would further jeopardize the health of the enrollee if
39 left untreated.

40 (d) As used in this section, "group contract" refers to a group
41 contract that provides coverage for prescription drugs.

42 (e) As used in this section, "health maintenance organization"



1 refers to a health maintenance organization that provides coverage
2 for prescription drugs. The term includes the following:

3 (1) A limited service health maintenance organization.

4 (2) A person that administers prescription drug benefits on
5 behalf of a health maintenance organization or a limited
6 service health maintenance organization.

7 (f) As used in this section, "individual contract" refers to an
8 individual contract that provides coverage for prescription drugs.

9 (g) A health maintenance organization that provides coverage
10 under an individual contract or a group contract for advanced,
11 metastatic cancer and associated conditions may not require that,
12 before the health maintenance organization provides coverage for
13 a prescription drug, the enrollee:

14 (1) fail to successfully respond to a different prescription
15 drug; or

16 (2) prove a history of failure of a different prescription drug.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Insurance, to which was referred House Bill 1114, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1114 as introduced.)

CARBAUGH

Committee Vote: Yeas 10, Nays 0

HOUSE MOTION

Mr. Speaker: I move that House Bill 1114 be amended to read as follows:

Page 1, line 3, delete "to a prescription" and insert "**to a:**

(1) prescription drug that is:

(A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(B) supported by peer reviewed, evidence based literature; and

(C) approved by the federal Food and Drug Administration; and

(2) state employee health plan that is established, entered into, amended, or renewed after June 30, 2026."

Page 1, delete lines 4 through 9.

Page 1, delete lines 14 through 17, begin a new paragraph and insert:

"(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the covered individual if left untreated."

Page 2, delete line 1.

Page 2, line 19, delete "to a prescription drug" and insert "**to a:**

(1) prescription drug that is:

(A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(B) supported by peer reviewed, evidence based literature; and

EH 1114—LS 6126/DI 154



(C) approved by the federal Food and Drug Administration; and

(2) policy of accident and sickness insurance that is issued, amended, or renewed after June 30, 2026."

Page 2, delete lines 20 through 25.

Page 2, delete lines 30 through 34, begin a new paragraph and insert:

"(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the insured if left untreated."

Page 3, line 8, delete "only" and insert "only to:

(1) a prescription drug that is:

(A) consistent with best practices for the treatment of advanced, metastatic cancer or an associated condition;

(B) supported by peer reviewed, evidence based literature; and

(C) approved by the federal Food and Drug Administration; and

(2) an individual contract or a group contract that is entered into, amended, or renewed after June 30, 2026."

Page 3, delete lines 9 through 14.

Page 3, delete lines 19 through 23, begin a new paragraph and insert:

"(c) As used in this section, "associated conditions" means the symptoms or side effects directly attributable to advanced, metastatic cancer or its treatment, which based on the recommendation of a health care practitioner and in accordance with documented clinical evidence and generally accepted guidelines, would further jeopardize the health of the enrollee if left untreated."

(Reference is to HB 1114 as printed January 20, 2026.)

PRYOR



COMMITTEE REPORT

Mr. President: The Senate Committee on Insurance and Financial Institutions, to which was referred House Bill No. 1114, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS and be reassigned to the Senate Committee on Appropriations.

(Reference is to HB 1114 as reprinted January 28, 2026.)

BALDWIN, Chairperson

Committee Vote: Yeas 6, Nays 2

EH 1114—LS 6126/DI 154

